THESE STATEMENTS WERE PROVIDED BY THE STATE OF HAWAII, DEPARTMENT OF THE ATTORNEY GENERAL

QUESTION #1: Increasing the Timeframe for the Hawaii Senate to Consider and Act on Judicial Appointments.

QUESTION
Shall the Constitution of the State of Hawaii be amended to allow the Senate more time to consider and act on the appointments of justices and judges, by increasing the timeframe from thirty days to sixty days for appointments made between April 1 and December 31 when the senate is not in regular session or is about to adjourn the regular session?

EXPLANATION
The proposed amendment would amend article VI, section 3, of the Hawaii State Constitution to extend from thirty days to sixty days the timeframe for Senate consideration of a judicial appointment if the appointment is made between April 1 and December 31, which is typically when the Legislature is nearing adjournment of a regular session or is not in regular session.

The Senate confirmation process for justices and judges of the Hawaii Supreme Court, Intermediate Court of appeals, and Circuit Courts, currently provides that the Governor shall make an appointment within thirty days of receiving a list of nominees from the Judicial Selection Commission. The Senate is then required to consent to or reject the Governor's appointment within thirty days or be deemed to have consented to the appointment.

Because the Hawaii State Legislature is a part-time legislature and only meets in regular session part of the year, the Senate may need to convene in a special session for the sole purpose of acting on a judicial appointment. The purpose of the amendment is to allow greater flexibility in scheduling special sessions and thus limit the number of special sessions that may be needed to consider judicial appointments.

MEANING OF "YES" VOTE
A "yes" vote would extend from thirty days to sixty days the time allowed for the Senate to consider judicial appointments made between April 1 and December 31.

MEANING OF "NO" VOTE
A "no" vote would make no change to the Hawaii State Constitution and leave in place the requirement that the Senate consider a judicial appointment within thirty days or be deemed to have consented to the appointment.

MEANING OF BLANK VOTE OR OVERVOTE
A "blank" vote is not tallied as a "yes" vote or a "no" vote upon the question. Instead, a "blank" vote is only counted toward the total number of votes cast. Similarly, an "overvote" is not tallied as a "yes" vote or a "no" vote upon the question. Instead, an "overvote" is only counted toward the total number of votes cast.

In order for a proposed amendment to the Hawaii State Constitution to be ratified, it must be approved by a majority of all votes tallied upon the question (i.e., only "yes" and "no" votes). Additionally, this majority must constitute at least fifty percent of the total votes cast at the election (i.e., "yes," "no," "blank," and "overvotes").

For the full text of these proposed amendments, go to **elections.hawaii.gov** or call (808) 453-8683.